

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506478	RIVERA vs MCC PIPELINE, INC.	MOTION TO COMPEL PLAINTIFF ROGELIO RIVERA'S RESPONSES TO DEFENDANT'S SPECIAL INTERROGATORIES, SET ONE

Tentative Ruling:

The Court does not consider the declaration filed with the defendant's reply.

The defendant's motion to compel plaintiff's responses to special interrogatories is granted in part and denied in part. Specifically, the request for an order compelling plaintiff's responses is denied. The request for sanctions is granted in the reduced sum of \$760.

Analysis:

All evidence on which a moving party relies should be submitted with the moving papers. Evidence submitted with a reply is not considered because the opposing party is deprived of the opportunity to respond to it.

The defendant concedes that it has received the plaintiff's responses. Therefore, no order compelling responses is necessary. The only issue is whether sanctions should be imposed.

The plaintiff does not deny that the defendant did not receive responses until after the motion was filed. Therefore, sanctions are appropriate. However, the Court declines to award the amount sought by the defendant. Few motions are as simple to draft as a motion to compel initial discovery responses. Sanctions are reduced to two hours and the filing fee, for a total of \$760.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506478	RIVERA vs MCC PIPELINE, INC.	MOTION TO COMPEL PLAINTIFF ROGELIO RIVERA'S RESPONSES TO DEFENDANT'S REQUEST FOR PRODUCTION, SET ONE

Tentative Ruling:

The defendant's unopposed motion to compel initial responses to a request for production of documents is granted. Sanctions are imposed in the reduced sum of \$410. The proposed order is signed as modified.